



Opal Healthcare – Canberra Nursing Home

MN-50035

Phase 1 Determination

Acquisition may be put into effect

7 September 2026

1. Determination and statement of reasons

Notified acquisition	DPG Services Pty Ltd (DPG) and OHCA Property Holdings Pty Limited (OHCA) (being related bodies corporate and together referred to as Opal HealthCare) propose to acquire the land, assets and business comprising the Canberra Nursing Home residential aged care home located in Lidcombe, New South Wales (Canberra Nursing Home) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	DPG is a registered provider of approved residential care communities and owns and operates 149 residential aged care communities across New South Wales, Victoria, Queensland, Western Australia and South Australia. Canberra Nursing Home is a privately-owned residential care home that is approved for 70 beds, located at 21 Mary Street, Lidcombe NSW. Canberra Nursing Home provides the services required under the <i>Aged Care Act 2024</i> (Cth), including permanent care and palliative care.
Overlap between the Parties	Opal Healthcare and Canberra Nursing Home (together, the Parties) overlap in the supply of residential aged care homes in metropolitan Sydney.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties, and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The aggregation arising from the Acquisition, taking into account previous acquisitions by Opal HealthCare in the last three years, is not significant at a local or regional level (nor at the national level). • The merged firm would likely continue to face competition from alternative suppliers of residential aged care in the local area

	surrounding Canberra Nursing Home.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**